

**BEFORE THE
FEDERAL MARITIME COMMISSION**

Docket No. 12-09

CENTURY METAL RECYCLING PVT. LTD

COMPLAINANT

v.

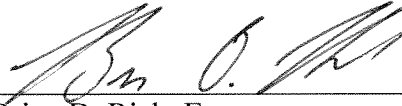
**DACON LOGISTICS, LLC dba CODA FORWARDING, GREAT AMERICAN
ALLIANCE INSURANCE COMPANY, AVALON RISK MANAGEMENT, HAPAG
LLOYD AMERICA, INC. AND MITSUI OSK LINES**

RESPONDENTS

**COMPLAINANT'S NOTICE OF DISMISSAL AS TO GREAT AMERICAN ALLIANCE
INSURANCE COMPANY AND AVALON RISK MANAGEMENT**

Complainant Century Metal Recycling, Pvt. Ltd ("Century Metal"), by and through its attorneys, Halloran & Sage, LLP, hereby file this Notice of Dismissal dismissing Great American Alliance Insurance Company and Avalon Risk Management from this action, pursuant to 46 CFR 502.72(a)(1). Neither Great American Alliance Insurance Company nor Avalon Risk Management have filed an answer, a motion to dismiss, or a motion for summary decision. Therefore, Century Metal voluntarily dismisses both Respondents from this action.

Respectfully submitted,

Handwritten signatures of Brian D. Rich and Melanie P. Dykas in black ink, positioned above a horizontal line.

Brian D. Rich, Esq.

Melanie P. Dykas, Esq.

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Counsel for Complainant Century Metal Recycling Pvt. Ltd

Dated in Hartford, CT this second of January, 2013.

Certificate of Service

I hereby certify that I have on this second day of January, 2013, served a copy of the foregoing Notice of Dismissal as to Great American Alliance Insurance Company and Avalon Risk Management upon the following via first class mail:

Hapag-Lloyd America, Inc
c/o Wayne R. Rhode
Cozen O'Connor
Suite 1100
1627 I Street, N.W.
Washington, D.C. 20006

Dacon Logistics, LLC
31 Mountain Boulevard
Warren, New Jersey 07059

Mitsui OSK Lines
c/o Kevin J. Hartmann
Hae Woen Grace Bae
MOL (America) Inc.
160 Fieldcrest Avenue
Edison, NJ 07020

Mitsui OSK Lines
c/o Marc J. Fink
Cozen O'Connor
Suite 1100
1627 I Street, N.W.
Washington, D.C. 20006

Great American Alliance Insurance Company and
Avalon Risk Management
c/o Theodore H. Adkinson
Andrew D. Kehagiaras
Roberts and Kehagiaras LLP
One World Trade Center,
Suite 2350
Long Beach, CA 90831



Brian D. Rich, Esq.